

STATE OF MINNESOTA
COUNTY OF HENNEPIN

Yibiao Lu and Jie Hu,

Plaintiffs,

vs.

Fire Insurance Exchange, by and through its
attorney-in-fact Fire Underwriters Association,
doing business as Farmers Insurance,

Defendant.

DISTRICT COURT
FOURTH JUDICIAL DISTRICT

Case Type: Contract

Court File No. 27-CV-26-11606

Judge: Jamie Anderson

**PLAINTIFFS' FIRST SET OF REQUESTS FOR ADMISSION
TO DEFENDANT FIRE INSURANCE EXCHANGE**

TO: Defendant Fire Insurance Exchange, by and through its attorney-in-fact Fire Underwriters Association, and its attorneys of record.

PLEASE TAKE NOTICE that, pursuant to Rules 26 and 36 of the Minnesota Rules of Civil Procedure, Plaintiffs Yibiao Lu and Jie Hu request that Defendant admit, for purposes of this action only, the truth of each of the following matters within thirty (30) days after service. Each matter is admitted unless, within that period, Defendant serves a written answer or objection addressed to the matter, signed by the party or its attorney, as required by Minn. R. Civ. P. 36.01.

DEFINITIONS

"Defendant," "Farmers," "FIE," "You," and "Your" mean Fire Insurance Exchange, its attorney-in-fact Fire Underwriters Association (and, to the extent it acted as attorney-in-fact in connection with The Policy, Farmers Underwriters Association), and their employees, adjusters, and agents, acting in connection with The Policy, The Claim, or The 2020 Claim.

"Fire Insurance Exchange" means that entity only when used alone and spelled in full, and does not include its attorney-in-fact, any affiliate, or any other person within the preceding definition.

"Plaintiffs" means Yibiao Lu and Jie Hu.

"The Claim" means Farmers claim number 7007986837-1-1, date of loss July 13, 2024.

"The 2020 Claim" means Farmers claim number 3013539499-1.

"The February 18, 2022 Settlement Package" means the 11-page document dated February 18, 2022 that You provided to Plaintiff Yibiao Lu concerning The 2020 Claim, consisting of Your two-page letter captioned "Settlement Notice," the one-page "BUILDING LOSS WORKSHEET" headed "This is a complete recap of your claim," and the eight-page estimate that follows, identified on its face as Estimate "YIBIAO_LU2," bearing "Claim Number: 3013539499-1-1" and setting out numbered line items 1 through 32.

"The Policy" means homeowner's Policy 98055-49-65 (shown on Defendant's correspondence as 0980554965), including all endorsements, in force on July 13, 2024.

"The Policy Form" means the Farmers Next Generation Homeowners Policy Minnesota, Form 56-5543 2nd Edition, as listed in the Declarations of The Policy effective October 22, 2023.

"The Property" means the insured dwelling at 17756 George Moran Dr., Eden Prairie, Minnesota 55347.

"The Prieve Report" means the seven-page report of Prieve Engineering, LLC titled "Evaluation of Condition of Windows as Relates to Hail," File Number 241008, report date November 4, 2024, as transmitted with Your November 4, 2024 letter to Plaintiffs.

"Photo Appendix A" means the 110-page photographic appendix to The Prieve Report, titled "PHOTO APPENDIX A" and bearing File Number 241008 and site visit date October 9, 2024, containing photographs numbered A-1 through A-217.

"The Coverage Outcome Attachment" means the document titled "Coverage Outcome – Policy Provisions" transmitted with Your November 4, 2024 letter to Plaintiffs.

"The September 3, 2024 Denial Package" means the 74-page PDF document dated September 3, 2024 that Plaintiffs received from You, consisting of Your September 3, 2024 letter to Plaintiffs (pages 1–2), a two-page document titled "Coverage Outcome – Policy Provisions" (pages 3–4; a different document from The Coverage Outcome Attachment), a one-page Hancock Claims Consultants roof diagram (page 5), and the two photograph logs defined below (pages 6–74).

"The First Photo Set" means the 19-page photograph log at pages 6 through 24 of The September 3, 2024 Denial Package, bearing the page-footer date 8/30/2024 and containing photographs numbered 1 through 38.

"The Second Photo Set" means the 50-page photograph log at pages 25 through 74 of The September 3, 2024 Denial Package, bearing the page-footer date 8/31/2024 and containing photographs numbered 1 through 100.

"No-Damage Caption" means a caption of a photograph in The First Photo Set or The Second Photo Set that ends with the word "No," either standing alone or followed by an

underscore and one or more numerals, whether one digit or two (for example, "Window Wrap North Damaged - No_7" and "Window Wrap North Damaged - No_20").

"The Appraisal Award" means the written appraisal award concerning The Claim dated on or about September 12, 2025.

"Document" and "Documents" mean any writing, photograph, note, or electronically stored record, including any entry in Your electronic claim file.

"Person" and "person" mean any natural person or group of natural persons, and any business, legal, or governmental entity of any form, whether or not incorporated, including any corporation, partnership, limited liability company, association, reciprocal or interinsurance exchange, attorney-in-fact, trust, or joint venture.

INSTRUCTIONS

1. **Answering.** As to each request, Defendant must specifically admit or deny the matter or set forth in detail the reasons why it cannot truthfully admit or deny it. A denial must fairly meet the substance of the requested admission, and when good faith requires that Defendant qualify an answer or deny only a part of a matter, it must specify so much as is true and qualify or deny the remainder. Minn. R. Civ. P. 36.01.
2. **Lack of knowledge.** Defendant may not give lack of information or knowledge as a reason for failure to admit or deny unless it states that it has made reasonable inquiry and that the information known or readily obtainable by it is insufficient to enable it to admit or deny. Minn. R. Civ. P. 36.01.
3. **Effect of non-response.** Pursuant to Minn. R. Civ. P. 36.01, any matter not timely answered or objected to is deemed admitted, and any matter admitted is conclusively established for purposes of this action unless the Court on motion permits withdrawal or amendment of the admission. Minn. R. Civ. P. 36.02. If the Court determines that an answer does not comply with the requirements of Minn. R. Civ. P. 36.01, it may order either that the matter is admitted or that an amended answer be served. Minn. R. Civ. P. 36.01.
4. **Continuing duty.** Defendant must supplement or correct its responses as required by Minn. R. Civ. P. 26.05(a). A matter admitted, however, is conclusively established and may be withdrawn or amended only by order of the Court on motion under Minn. R. Civ. P. 36.02.
5. **Objections.** If Defendant objects to a request, it must state the reasons for the objection; it may not object solely on the ground that the request presents a genuine issue for trial. Minn. R. Civ. P. 36.01.

6. **Dates.** A date used to identify a communication, document, or event reflects Plaintiffs' best information and is approximate. If Defendant's records show a different date for a communication, document, or event otherwise matching the description, Defendant must answer as to that communication, document, or event and state the date its records show, rather than deny the request on the basis of the date alone.
7. **Cost of an unfounded denial.** If Defendant fails to admit any matter requested herein and Plaintiffs thereafter prove the truth of that matter, Plaintiffs will apply to the Court for an order requiring Defendant to pay the reasonable expenses incurred in making that proof, including any reasonable attorney fees, pursuant to Minn. R. Civ. P. 37.03(b).
8. **No attachments.** No document is attached to or served with this set. Each request refers to a term defined above or to a document or record in Defendant's own possession, custody, or control. Plaintiffs will provide a copy of any document referred to in these requests promptly upon Defendant's request.
9. **Answering on behalf of others.** If Defendant answers any request on behalf of fewer than all persons within the definition of "You," it must say so in that answer and state which persons are excluded.
10. **Attorney-client communications and litigation counsel.** No request seeks information protected by the attorney-client privilege or by Minn. R. Civ. P. 26.02(d). No request is directed to communications solely between Defendant and its counsel of record in this action dated on or after July 8, 2026.

REQUESTS FOR ADMISSION

A. The Policy and the coverage grant

REQUEST FOR ADMISSION NO. 1: Admit that The September 3, 2024 Denial Package to Plaintiffs stated, "our investigation found your policy provides coverage for direct physical loss to insured property, less uninsured or excluded."

REQUEST FOR ADMISSION NO. 2: Admit that The Policy Form, at "Section I - Loss or Damage Insured," states: "We insure accidental direct physical loss or damage to that property described in Section I - Types of Property Insured."

REQUEST FOR ADMISSION NO. 3: Admit that item 26 ("Windstorm or hail") of subsection B of Section I – Uninsured Loss or Damage and Excluded Causes of Loss or Damage of The Policy Form does not apply to loss or damage to the windows of the dwelling at The Property.

B. Identity and capacity of the acting entity

Relevant to Defendant's First Affirmative Defense, which alleges "there exists a lack of jurisdiction over Defendant FIE."

REQUEST FOR ADMISSION NO. 4: Admit that Christian Dudley was employed or engaged by Fire Insurance Exchange at the time of his involvement in The Claim.

REQUEST FOR ADMISSION NO. 5: Admit that Nicholas Brau was employed or engaged by Fire Insurance Exchange at the time of his September 6, 2024 inspection of The Property.

REQUEST FOR ADMISSION NO. 6: Admit that Bradlee Monson was employed or engaged by Fire Insurance Exchange at the time of his involvement in The Claim.

REQUEST FOR ADMISSION NO. 7: Admit that Fire Insurance Exchange made the coverage decision communicated in The September 3, 2024 Denial Package to Plaintiffs.

REQUEST FOR ADMISSION NO. 8: Admit that Fire Insurance Exchange made the coverage decision communicated in Your November 4, 2024 letter to Plaintiffs.

REQUEST FOR ADMISSION NO. 9: Admit that Fire Insurance Exchange retained Hancock Claims Consultants to inspect The Property.

REQUEST FOR ADMISSION NO. 10: Admit that Fire Insurance Exchange maintains the claim file for The Claim.

REQUEST FOR ADMISSION NO. 11: Admit that Fire Insurance Exchange maintains the claim file for The 2020 Claim.

REQUEST FOR ADMISSION NO. 12: Admit that Fire Underwriters Association acts as attorney-in-fact for Fire Insurance Exchange.

C. The appraisal: the Demand, and what the Award states

REQUEST FOR ADMISSION NO. 13: Admit that Plaintiffs' August 3, 2025 Demand for Appraisal did not list downspouts, gutters, exterior doors, or window screens among the items to be considered by the appraisal panel.

REQUEST FOR ADMISSION NO. 14: Admit that The Appraisal Award identifies the two awarded windows only by the designations "F1.7" and "B1.2."

REQUEST FOR ADMISSION NO. 15: Admit that The Appraisal Award states a Replacement Cost Value of \$12,800 and an Actual Cash Value of \$6,400 on a single line, the item description of which reads "Windows F1.7 B1.2."

REQUEST FOR ADMISSION NO. 16: Admit that The Appraisal Award does not state separately an actual value or a loss for the window designated "F1.7."

REQUEST FOR ADMISSION NO. 17: Admit that The Appraisal Award does not state separately an actual value or a loss for the window designated "B1.2."

REQUEST FOR ADMISSION NO. 18: Admit that The Appraisal Award does not state an actual value or a loss for any window at The Property other than the two windows designated "F1.7" and "B1.2."

REQUEST FOR ADMISSION NO. 19: Admit that The Appraisal Award does not state, as to any window at The Property other than the windows designated "F1.7" and "B1.2," whether hail caused damage to that window.

REQUEST FOR ADMISSION NO. 20: Admit that You are bound by The Appraisal Award's determination that hail was the cause of loss to the windows designated "F1.7" and "B1.2."

REQUEST FOR ADMISSION NO. 21: Admit that You do not contend that any provision of Section I – Uninsured Loss or Damage and Excluded Causes of Loss or Damage of The Policy Form bars or reduces recovery for the loss to the windows designated "F1.7" and "B1.2" in The Appraisal Award.

REQUEST FOR ADMISSION NO. 22: Admit that the application of the windstorm/hail deductible is the only reason You have made no payment on account of the loss to the windows designated "F1.7" and "B1.2" in The Appraisal Award.

REQUEST FOR ADMISSION NO. 23: Admit that, on The Appraisal Award, the signature line and date line for "Greg Tomes" beneath the statement "We certify the amounts established above for the described loss" are blank.

REQUEST FOR ADMISSION NO. 24: Admit that the only signature of Greg Tomes on The Appraisal Award appears in the section acknowledging that Wade Roos "has been appointed to act as umpire in accord with the policy conditions."

REQUEST FOR ADMISSION NO. 25: Admit that the only items listed in the item column of The Appraisal Award are "Siding & Paint," "Windows F1.7 B1.2," and "Debris."

REQUEST FOR ADMISSION NO. 26: Admit that The Appraisal Award states a Replacement Cost Value of \$0 and an Actual Cash Value of \$0 for the item "Siding & Paint."

REQUEST FOR ADMISSION NO. 27: Admit that The Appraisal Award states "Hail" in the Causation column for the item "Siding & Paint."

D. The September 3, 2024 denial

REQUEST FOR ADMISSION NO. 28: Admit that The September 3, 2024 Denial Package to Plaintiffs stated, "There were no other damages observed."

REQUEST FOR ADMISSION NO. 29: Admit that on September 6, 2024, Your Senior Claim Adjuster Nicholas Brau observed dents on multiple windows at The Property.

REQUEST FOR ADMISSION NO. 30: Admit that during the September 6, 2024 inspection of The Property, Nicholas Brau measured multiple windows at The Property.

REQUEST FOR ADMISSION NO. 31: Admit that on October 28, 2025, Plaintiff Yibiao Lu sent an electronic mail message to nic.brau@farmersinsurance.com stating, "We found dents together and you measured sizes of some damaged windows. Can we ask for a copy of the notes you took that day?"

REQUEST FOR ADMISSION NO. 32: Admit that the inspection referred to in The September 3, 2024 Denial Package as "we had your home inspected" was the August 29, 2024 inspection performed by Hancock Claims Consultants.

REQUEST FOR ADMISSION NO. 33: Admit that, in connection with The Claim, You did not obtain any engineering analysis, engineering report, or engineering opinion concerning The Property before issuing The September 3, 2024 Denial Package.

REQUEST FOR ADMISSION NO. 34: Admit that, in connection with The Claim, no licensed professional engineer inspected The Property on Your behalf before September 3, 2024.

REQUEST FOR ADMISSION NO. 35: Admit that Nicholas Brau did not inspect The Property before The September 3, 2024 Denial Package was issued.

E. The November 4, 2024 denial and the provisions it cited

Each provision below is quoted as it appears in The Coverage Outcome Attachment.

REQUEST FOR ADMISSION NO. 36: Admit that The Coverage Outcome Attachment cites Section I.A.4 and Section I.B.6, "Inherent Vice or Latent Defect."

REQUEST FOR ADMISSION NO. 37: Admit that The Coverage Outcome Attachment cites Section I.A.7, "Wear and tear or mechanical breakdown."

REQUEST FOR ADMISSION NO. 38: Admit that The Coverage Outcome Attachment cites Section I.A.8, "Marring."

REQUEST FOR ADMISSION NO. 39: Admit that The Coverage Outcome Attachment cites Section I.A.9 and Section I.B.9, "Corrosion, Deterioration, Decay or Rust."

REQUEST FOR ADMISSION NO. 40: Admit that The Coverage Outcome Attachment cites Section I.B.4, "Neglect or Lack of Maintenance or Failure to Make Repairs."

REQUEST FOR ADMISSION NO. 41: Admit that The Coverage Outcome Attachment cites Section I.B.5, "Faulty, Inadequate, Defective or Incomplete Planning, Zoning, Maintenance, Repairs, Renovation, Manufacture or Construction."

REQUEST FOR ADMISSION NO. 42: Admit that The Coverage Outcome Attachment cites Section I.B.8, "Wear and Tear, Deterioration or Mechanical Breakdown."

REQUEST FOR ADMISSION NO. 43: Admit that the definition of "Marring" set out at paragraph 16 of The Coverage Outcome Attachment lists "denting" among its examples of marring.

F. The Marring provision and its hail exception

Requests 44 and 45 quote The Policy Form. Requests 46 and 47 concern The Coverage Outcome Attachment transmitted with Your November 4, 2024 letter, and are to be read with Request No. 43.

REQUEST FOR ADMISSION NO. 44: Admit that item 8 ("Marring") of subsection A of Section I – Uninsured Loss or Damage and Excluded Causes of Loss or Damage of The Policy Form states: "However, we do insure marring which is directly caused by, arises out of or results from the following causes of loss, subject to the terms and limitations set forth in subsection B. Excluded Causes of Loss or Damage and in Extensions of Coverage for any such cause of loss or extensions of coverage:"

REQUEST FOR ADMISSION NO. 45: Admit that "windstorm or hail" is among the causes of loss listed immediately after the sentence quoted in the preceding request.

REQUEST FOR ADMISSION NO. 46: Admit that The Coverage Outcome Attachment does not set out the sentence of item 8 ("Marring") of subsection A that begins "However, we do insure marring."

REQUEST FOR ADMISSION NO. 47: Admit that, for item 8 ("Marring") of subsection A, The Coverage Outcome Attachment sets out only the heading "8. Marring." followed by an ellipsis.

G. The Prieve engagement, the November 4, 2024 letter, and work product

Requests 48 through 54 concern the engagement of Prieve Engineering, LLC, Your November 4, 2024 letter, and the work-product status of Your claim file, and are to be read with Requests Nos. 55 through 58.

REQUEST FOR ADMISSION NO. 48: Admit that You do not contend that The Prieve Report was prepared in anticipation of litigation or for trial within the meaning of Minn. R. Civ. P. 26.02(d).

REQUEST FOR ADMISSION NO. 49: Admit that neither Prieve Engineering, LLC nor Nathan Prieve was retained or specially employed by You in anticipation of litigation or preparation for trial within the meaning of Minn. R. Civ. P. 26.02(e)(2).

REQUEST FOR ADMISSION NO. 50: Admit that no document in Your claim file for The Claim created on or before November 4, 2024 was prepared in anticipation of litigation or for trial within the meaning of Minn. R. Civ. P. 26.02(d).

REQUEST FOR ADMISSION NO. 51: Admit that The Prieve Report states that Prieve Engineering, LLC visited The Property "Per the request of Nic Brau of Farmers Insurance."

REQUEST FOR ADMISSION NO. 52: Admit that The Prieve Report bears the report date November 4, 2024.

REQUEST FOR ADMISSION NO. 53: Admit that Your November 4, 2024 letter to Plaintiffs was signed by Nicholas Brau, Claims Spec Rep Prop, Fire Insurance Exchange.

REQUEST FOR ADMISSION NO. 54: Admit that Your November 4, 2024 letter to Plaintiffs stated, "Our investigation found the condition of the window and components to be from wear/tear as referenced [sic] in the attached engineer report."

H. The Prieve Report and Photo Appendix A

REQUEST FOR ADMISSION NO. 55: Admit that You retained Prieve Engineering, LLC to "evaluate the condition of windows in the home as relates to hail."

REQUEST FOR ADMISSION NO. 56: Admit that You did not retain Prieve Engineering, LLC to evaluate the condition of the siding at The Property.

REQUEST FOR ADMISSION NO. 57: Admit that The Prieve Report contains no quantitative impact-force calculation.

REQUEST FOR ADMISSION NO. 58: Admit that The Prieve Report contains no terminal-velocity calculation.

REQUEST FOR ADMISSION NO. 59: Admit that Photo Appendix A contains no photograph of the two-sash fixed window that is the only other window on the rear (east) elevation of the attached garage at The Property, south of the garage window depicted at photographs A-213 through A-217.

REQUEST FOR ADMISSION NO. 60: Admit that no person acting for You or retained by You has inspected the window described in the preceding request.

REQUEST FOR ADMISSION NO. 61: Admit that The Prieve Report is a genuine copy of the report prepared by Prieve Engineering, LLC, File Number 241008.

REQUEST FOR ADMISSION NO. 62: Admit that The Prieve Report does not state the size of any hailstone that fell at The Property on July 13 or 14, 2024.

REQUEST FOR ADMISSION NO. 63: Admit that The Prieve Report does not state the minimum hailstone size required to dent the window frames or sashes at The Property.

REQUEST FOR ADMISSION NO. 64: Admit that The Prieve Report does not state the criteria used to determine whether a dent is consistent with hail.

REQUEST FOR ADMISSION NO. 65: Admit that The Prieve Report does not state the size, depth, or dimensions of any dent, mark, or indentation described in it.

REQUEST FOR ADMISSION NO. 66: Admit that The Prieve Report does not identify any publication, study, or test method in support of any opinion stated in it.

REQUEST FOR ADMISSION NO. 67: Admit that The Prieve Report does not identify the "customary and usual standards" referred to on page 2 of The Prieve Report.

REQUEST FOR ADMISSION NO. 68: Admit that The Prieve Report does not state any wind speed at The Property on July 13 or 14, 2024.

I. The 2020 Claim

REQUEST FOR ADMISSION NO. 69: Admit that line item 1 of the estimate within The February 18, 2022 Settlement Package reads "R&R Wood window - casement, 12-23 sf" and states a quantity of 2.00 EA.

REQUEST FOR ADMISSION NO. 70: Admit that the only line items of the estimate within The February 18, 2022 Settlement Package that refer to windows are line items 1 ("R&R Wood window - casement, 12-23 sf"), 2 ("Window blind - horizontal or vertical - Detach & reset"), 3 ("Additional charge for a retrofit window, 24-40 sf"), and 32 ("Window treatment repair").

REQUEST FOR ADMISSION NO. 71: Admit that the estimate within The February 18, 2022 Settlement Package states "Type of Loss: Hail."

REQUEST FOR ADMISSION NO. 72: Admit that the estimate within The February 18, 2022 Settlement Package does not identify the location at The Property of the item or items addressed by line item 1.

REQUEST FOR ADMISSION NO. 73: Admit that Your claim records for The Property identify no hail loss with a date of loss after September 5, 2020, other than The Claim.

REQUEST FOR ADMISSION NO. 74: Admit that on October 7, 2021, You received a request from Plaintiff Yibiao Lu for an extension of time to complete repairs or replacement and to recover replacement cost benefits on The 2020 Claim.

REQUEST FOR ADMISSION NO. 75: Admit that Your October 12, 2021 letter to Plaintiff Yibiao Lu concerning The 2020 Claim stated: "We're happy to extend your replacement cost deadline to February 15, 2022."

REQUEST FOR ADMISSION NO. 76: Admit that You did not extend the replacement cost deadline for The 2020 Claim beyond February 15, 2022.

REQUEST FOR ADMISSION NO. 77: Admit that Your February 17, 2022 electronic mail message to Plaintiff Yibiao Lu concerning The 2020 Claim stated: "I am unable to ask for additional time without detailed information as to why the work was not able to be completed in the timeline provided by the contractor."

REQUEST FOR ADMISSION NO. 78: Admit that before February 17, 2022, You received from Plaintiff Yibiao Lu a request for an extension of the replacement cost deadline on The 2020 Claim beyond February 15, 2022.

J. The engineer-report requirement and Plaintiffs' submissions

REQUEST FOR ADMISSION NO. 79: Admit that on February 3, 2025, Your field claim supervisor Bradlee Monson told Plaintiff Yibiao Lu that You would not review evidence unless it was provided by an engineer.

REQUEST FOR ADMISSION NO. 80: Admit that You have no written policy, procedure, or guideline describing the peer review referred to in Your answer to paragraph 24 of the Complaint.

REQUEST FOR ADMISSION NO. 81: Admit that You received Plaintiffs' January 31, 2025 submission concerning post-2020 storm activity and gutter replacement.

REQUEST FOR ADMISSION NO. 82: Admit that You received Plaintiffs' February 10, 2025 submission containing City of Eden Prairie permit records and a neighbor canvass.

REQUEST FOR ADMISSION NO. 83: Admit that You received, directly or through Peter Pietila, Plaintiffs' May 28, 2025 submission containing National Weather Service and Interactive Hail Maps material.

REQUEST FOR ADMISSION NO. 84: Admit that You did not reopen The Claim after receiving the submissions identified in the three preceding requests.

K. Missing records and non-payment

REQUEST FOR ADMISSION NO. 85: Admit that Your October 10, 2025 letter to Plaintiffs stated, "The file does not contain a report on the requested date."

REQUEST FOR ADMISSION NO. 86: Admit that the "requested date" referred to in the statement quoted in the preceding request was September 6, 2024.

See also Requests for Admission Nos. 140 and 141.

REQUEST FOR ADMISSION NO. 87: Admit that You have paid Plaintiffs nothing on The Claim.

See also Request for Admission No. 22.

L. Claim handlers and the September 6, 2024 inspection records

Requests 88 through 97 concern the persons who handled The Claim and the records of the September 6, 2024 inspection, and are to be read with Requests Nos. 4 through 8, 29, 85, and 86.

REQUEST FOR ADMISSION NO. 88: Admit that Christian Dudley acted on behalf of Fire Insurance Exchange in handling The Claim.

REQUEST FOR ADMISSION NO. 89: Admit that Nicholas Brau acted on behalf of Fire Insurance Exchange in handling The Claim.

REQUEST FOR ADMISSION NO. 90: Admit that Bradlee Monson acted on behalf of Fire Insurance Exchange in handling The Claim.

REQUEST FOR ADMISSION NO. 91: Admit that Zorphlon Miller acted on behalf of Fire Insurance Exchange in handling The Claim.

REQUEST FOR ADMISSION NO. 92: Admit that Jillian Bell acted on behalf of Fire Insurance Exchange in handling The Claim.

REQUEST FOR ADMISSION NO. 93: Admit that during the September 6, 2024 inspection of The Property, Nicholas Brau made handwritten notes, photos, measurements, or sketches concerning the windows at The Property.

REQUEST FOR ADMISSION NO. 94: Admit that on October 29, 2025, notes, photos, measurements, or sketches made by Nicholas Brau in connection with the September 6, 2024 inspection of The Property were in Your possession, custody, or control.

REQUEST FOR ADMISSION NO. 95: Admit that no document You have produced or released to Plaintiffs records Nicholas Brau's observations from the September 6, 2024 inspection of The Property.

REQUEST FOR ADMISSION NO. 96: Admit that, as of September 6, 2024, You had not issued any litigation hold, preservation notice, or document-preservation instruction directing the preservation of documents concerning The Claim.

REQUEST FOR ADMISSION NO. 97: Admit that, as of November 4, 2024, You had not issued any litigation hold, preservation notice, or document-preservation instruction directing the preservation of documents concerning The Claim.

M. The September 3, 2024 Denial Package and its photograph logs

REQUEST FOR ADMISSION NO. 98: Admit that You sent The September 3, 2024 Denial Package to Plaintiffs on or about September 3, 2024.

REQUEST FOR ADMISSION NO. 99: Admit that each of the 38 photographs in The First Photo Set bears a No-Damage Caption.

REQUEST FOR ADMISSION NO. 100: Admit that 94 of the 100 photographs in The Second Photo Set bear a No-Damage Caption.

REQUEST FOR ADMISSION NO. 101: Admit that The Second Photo Set contains 34 photographs whose captions begin with the word "Siding."

REQUEST FOR ADMISSION NO. 102: Admit that each photograph in The Second Photo Set whose caption begins with the word "Siding" bears a No-Damage Caption.

REQUEST FOR ADMISSION NO. 103: Admit that photographs numbered 98, 99, and 100 of The Second Photo Set are photographs of downspouts at The Property.

REQUEST FOR ADMISSION NO. 104: Admit that each of photographs numbered 98, 99, and 100 of The Second Photo Set bears a No-Damage Caption.

REQUEST FOR ADMISSION NO. 105: Admit that The First Photo Set and The Second Photo Set were prepared by Hancock Claims Consultants in connection with its August 29, 2024 inspection of The Property.

REQUEST FOR ADMISSION NO. 106: Admit that, in a No-Damage Caption, the underscore and numeral following the word "No" distinguish multiple photographs bearing the same underlying caption and do not denote a different condition, assessment, or finding.

REQUEST FOR ADMISSION NO. 107: Admit that Your October 10, 2025 letter to Plaintiffs was signed by Zorphlon Miller, Senior General Claims Adjuster.

REQUEST FOR ADMISSION NO. 108: Admit that Your October 10, 2025 letter to Plaintiffs stated, "I have attached the coverage position and photos sent by Mr. Dudley."

N. The October 29, 2025 email

REQUEST FOR ADMISSION NO. 109: Admit that on October 29, 2025, Nicholas Brau sent Plaintiffs an electronic mail message stating, "All the information we can release has already been sent to you."

REQUEST FOR ADMISSION NO. 110: Admit that the message identified in Request No. 109 was signed by Nicholas Brau, Claims Spec Rep Prop, Fire Insurance Exchange.

O. The October 21, 2025 reply and the handling of post-appraisal correspondence

REQUEST FOR ADMISSION NO. 111: Admit that Your October 21, 2025 electronic mail message to Plaintiffs was signed by Jillian Bell, Senior General Claims Adjuster, Fire Insurance Exchange.

REQUEST FOR ADMISSION NO. 112: Admit that Jillian Bell was employed or engaged by Fire Insurance Exchange on October 21, 2025.

P. Party identity, agency, and the Hancock inspector

REQUEST FOR ADMISSION NO. 113: Admit that You do not contend that any person should be the defendant in this action in place of Fire Insurance Exchange.

REQUEST FOR ADMISSION NO. 114: Admit that You do not contend that any person must be added as a defendant in this action.

REQUEST FOR ADMISSION NO. 115: Admit that You do not contend that Fire Insurance Exchange is misnamed or misdescribed in the caption of this action.

REQUEST FOR ADMISSION NO. 116: Admit that, in its dealings with Plaintiffs concerning The Policy and The Claim, Fire Insurance Exchange did business under the name "Farmers Insurance."

REQUEST FOR ADMISSION NO. 117: Admit that Zorphlon Miller was employed or engaged by Fire Insurance Exchange on October 10, 2025.

REQUEST FOR ADMISSION NO. 118: Admit that Peter Pietila acted as Your agent in connection with The Policy.

REQUEST FOR ADMISSION NO. 119: Admit that Jayden Grimm performed the August 29, 2024 inspection of The Property on behalf of Hancock Claims Consultants.

REQUEST FOR ADMISSION NO. 120: Admit that Jayden Grimm was the only individual who inspected The Property on behalf of Hancock Claims Consultants on August 29, 2024.

Q. The Policy's own provisions bearing on capacity, suit, and forum

Relevant to Defendant's First Affirmative Defense, which alleges "there exists a lack of jurisdiction over Defendant FIE."

REQUEST FOR ADMISSION NO. 121: Admit that The Policy Form, at "General Conditions Applying to The Entire Policy," provision 15 ("Reciprocal provisions"), states: "We may sue or be sued in our own name, as though we were an individual, if necessary to enforce any claims which arise under this policy."

REQUEST FOR ADMISSION NO. 122: Admit that The Policy Form, at "General Conditions Applying to The Entire Policy," provision 11 ("What law will apply"), states: "The laws of the state where the residence premises is located shall govern any and all claims or disputes in any way related to this policy."

REQUEST FOR ADMISSION NO. 123: Admit that the text of The Policy Form in force on July 13, 2024 is identical to the text of Form 56-5543 2nd Edition (7-08) included in the "Home Insurance New Policy" documents for The Policy that You sent to Plaintiff Yibiao Lu under a cover letter dated December 8, 2014.

REQUEST FOR ADMISSION NO. 124: Admit that the homeowner's policy form in force for The Policy on July 13, 2024 was Farmers Next Generation Homeowners Policy Minnesota, Form 56-5543 2nd Edition.

REQUEST FOR ADMISSION NO. 125: Admit that the "Subscription Agreement Notice" included in Your renewal documents for The Policy for the policy period October 22, 2023 to October 22, 2024 designates Fire Underwriters Association as attorney-in-fact.

R. Service of process and jurisdiction

Relevant to Defendant's First Affirmative Defense, which alleges "there exists a lack of jurisdiction over Defendant FIE."

REQUEST FOR ADMISSION NO. 126: Admit that You received the Summons and Complaint in this action on or before July 8, 2026.

REQUEST FOR ADMISSION NO. 127: Admit that service of the Summons and Complaint in this action upon Fire Insurance Exchange under Minn. Stat. § 45.028 was effective no later than July 8, 2026.

REQUEST FOR ADMISSION NO. 128: Admit that You do not contend that service of the Summons and Complaint upon Fire Insurance Exchange was insufficient.

REQUEST FOR ADMISSION NO. 129: Admit that You do not contend that this Court lacks personal jurisdiction over Fire Insurance Exchange.

S. Plaintiff Jie Hu's status under The Policy

Relevant to Complaint ¶4, which Defendant's Answer did not admit as to Plaintiff Jie Hu, and to Defendant's First Affirmative Defense.

REQUEST FOR ADMISSION NO. 130: Admit that The Policy Form, under "Definitions," states: "Throughout this policy, 'you' and 'your' mean the 'named insured' shown in the Declarations or renewal notice and your spouse or registered domestic partner under applicable state law if a resident of the same household with you."

REQUEST FOR ADMISSION NO. 131: Admit that on July 13, 2024, Jie Hu was the spouse of Yibiao Lu.

REQUEST FOR ADMISSION NO. 132: Admit that on July 13, 2024, Jie Hu resided at The Property in the same household as Yibiao Lu.

REQUEST FOR ADMISSION NO. 133: Admit that Jie Hu is an insured under The Policy with respect to The Claim.

REQUEST FOR ADMISSION NO. 134: Admit that You do not contend that Jie Hu lacks standing to assert a claim under The Policy arising from The Claim.

REQUEST FOR ADMISSION NO. 135: Admit that You do not contend that Jie Hu is not a proper party plaintiff in this action.

T. The September 24, 2025 message and its signer

Requests 136 through 139 concern Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu.

REQUEST FOR ADMISSION NO. 136: Admit that Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu was signed by Twonda Miller, Senior General Claims Adjuster, Fire Insurance Exchange.

REQUEST FOR ADMISSION NO. 137: Admit that Twonda Miller acted on behalf of Fire Insurance Exchange in handling The Claim.

REQUEST FOR ADMISSION NO. 138: Admit that Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu stated, "Unfortunately, the umpire did not provide a report or estimate."

REQUEST FOR ADMISSION NO. 139: Admit that Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu stated, "Our only recommendation is to refer you to your appraiser for any additional details he may have in his file."

U. The October 7, 2025 request for Nicholas Brau's inspection report or notes

Requests 140 and 141 concern Plaintiff Yibiao Lu's October 7, 2025 electronic mail message, and are to be read with Requests Nos. 31, 85, and 86.

REQUEST FOR ADMISSION NO. 140: Admit that on October 7, 2025, Plaintiff Yibiao Lu sent an electronic mail message to myadjuster@farmersinsurance.com stating, "We request to have a copy of the inspection report/notes from Nic Brau. He came to the property on 9/6/2024 to perform the inspection."

REQUEST FOR ADMISSION NO. 141: Admit that Your October 10, 2025 letter to Plaintiffs was sent in response to the message identified in the preceding request.

Plaintiffs reserve the right to serve additional requests for admission. Minn. R. Civ. P. 36 imposes no numerical limit on requests for admission.

Dated: September 20, 2026.



Yibiao Lu, Plaintiff *pro se*

17756 George Moran Dr.

Eden Prairie, MN 55347

Telephone: 763-843-2859

Email: bill_y_lu@yahoo.com



Jie Hu, Plaintiff *pro se*

17756 George Moran Dr.

Eden Prairie, MN 55347

Telephone: 763-843-2860

Email: jie_h_hu@yahoo.com

CERTIFICATE OF SERVICE

I, Yibiao Lu, Plaintiff *pro se*, state that on September 20, 2026, I served a true and correct copy of *Plaintiffs' First Set of Requests for Admission to Defendant Fire Insurance Exchange* upon Defendant's counsel of record, by electronic mail in the manner the parties have agreed, as a PDF attachment sent from bill_y_lu@yahoo.com to:

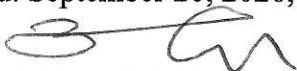
Kevin J. Kennedy — kkennedy@kennedylf.com

Mary J. Baskfield — mbaskfield@kennedylf.com

KENNEDY LAW FIRM P.C., *Counsel for Defendant Fire Insurance Exchange*
Minn. R. Civ. P. 5.02(b); Minn. Gen. R. Prac. 14.03(d)(2). These discovery requests are served, not filed. Minn. R. Civ. P. 5.04(b).

I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116.

Dated: September 20, 2026, at Eden Prairie, Hennepin County, Minnesota.



Yibiao Lu, Plaintiff *pro se*